

25STCV17547 25STCV17547

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-01

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Case Number: 25STCV17547 Hearing Date: July 1, 2026 Dept: 529

MOTION FOR LEAVE

TO AMEND PLAINTIFFS' COMPLAINT

Date

of Hearing: July 1, 2026 Trial Date: None set.

Department:

529 Case No.: 25STCV17547

Moving

Party: Plaintiff Aaron Hall

Responding

Party: No opposition

BACKGROUND

On June 17, 2025, Plaintiff Aaron Hall filed a complaint against Defendant Gary Winthorpe Productions, Inc. and Daniel John Duncan for breach of contract, fraud and accounting. Plaintiff alleges in 2019, the parties entered into an exclusive contract under which Plaintiff agreed to perform and create content solely for Defendants, in exchange for 80% of all revenue generated from the use and exploitation of his work. Despite earning at least \$2,000,000 from Plaintiff's work through advertising revenue, sponsorships, and other commercial use, Defendants have paid absolutely nothing to Plaintiff.

[TENTATIVE]

RULING:

Plaintiff Aaron Hall's Motion for Leave to Amend Plaintiff's Complaint is GRANTED.

DISCUSSION

Plaintiff Aaron Hall moves this court for an order permitting leave to amend and to file a First Amended Complaint.

"A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (CCP § 473(a)(1).) The court's discretion will usually be exercised liberally to permit amendments of the pleadings. (*Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) A complainant may obtain leave from the trial court to amend their pleading beyond the number of amendments allowed under Code of Civil Procedure section 472 (a) by filing a noticed motion. (CRC, Rule 3.1324.)

The motion must: (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (CRC, Rule 3.1324(a).)

The motion must be accompanied by a declaration stating: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (CRC, Rule 3.1324 (b).)

Plaintiff seeks to add three new Labor Code violations and a claim for violation of Business & Professions Code 17200 on the grounds new counsel for Plaintiff realized Mr. Hall's complaint should include Labor Code violations. Plaintiff contends the new causes of action do not change the underlying factual basis of the complaint and merely adds additional legal theories for recovery. Plaintiff attaches a copy of the proposed First Amended Complaint and a redline of the proposed First Amended

Complaint and the original complaint.

The court GRANTS the motion for leave to amend.

Plaintiff has substantially complied with the requirements and the motion is unopposed.